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ENBRIDGE ENERGY, LP, ET AL. *v.* NESSEL, ATTORNEY GENERAL OF MICHIGAN, ON BEHALF OF THE PEOPLE OF THE STATE OF MICHIGAN

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SIXTH CIRCUIT

No. 24–783. Argued February 24, 2026—Decided April 22, 2026

Petitioners (collectively Enbridge) own and operate Line 5, a 645-mile petroleum pipeline, 4 miles of which traverse the Straits of Mackinac pursuant to a 1953 easement granted to Enbridge's predecessor by the State of Michigan. On June 27, 2019, the Michigan Attorney General filed suit in Michigan state court seeking to halt Enbridge's operation of Line 5 by having the 1953 easement declared void and Enbridge's continuing operations declared unlawful. Enbridge was served with the complaint on July 12, 2019. Rather than removing the case to federal court within the 30-day deadline required by 28 U. S. C. § 1446(b)(1), Enbridge litigated in state court for months. In November 2020, more than a year after Enbridge's removal deadline had lapsed, the Michigan Governor issued a notice revoking the 1953 easement and filed a separate lawsuit in state court against Enbridge. In that suit, unlike in the Attorney General's suit, Enbridge timely removed to federal court, and the parties agreed to hold the Attorney General's case in abeyance while federal proceedings progressed. After the District Court denied the Governor's motion to remand, finding federal-question jurisdiction satisfied, the Governor voluntarily dismissed her lawsuit. On December 15, 2021—887 days after receiving the Attorney General's complaint—Enbridge removed this action to federal court. The Attorney General moved to remand, arguing that removal was untimely under § 1446(b)'s 30-day deadline. The District Court denied the motion, holding that equitable principles justified excusing Enbridge's untimely removal, and certified its order for interlocutory appeal. The Sixth Circuit reversed, holding that although § 1446(b)(1)'s deadline is nonjurisdictional, several features of § 1446(b)(1) and the overall removal scheme rebutted any presumption of equitable tolling. Thus, the lawsuit had to be remanded to the Michigan state court. This Court granted certiorari to resolve a divide among the Courts of Appeals on whether § 1446(b)(1) is subject to equitable tolling.

Held: Because § 1446(b)(1)'s text, structure, and context are inconsistent with equitable tolling, Enbridge's removal was untimely. Pp. 75–84.

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(a) The fact that the 30-day removal deadline in § 1446(b)(1) is nonjurisdictional does not automatically render it subject to equitable tolling. While jurisdictional requirements "cannot be waived or forfeited" and "do not allow for equitable exceptions," *Boechler* v. *Commissioner*, 596 U. S. 199, 203, "[t]he mere fact that a time limit lacks jurisdictional force . . . does not render it malleable in every respect," *Nutraceutical Corp.* v. *Lambert*, 586 U. S. 188, 192. Some nonjurisdictional rules remain "mandatory" and "are not susceptible" of equitable tolling. *Ibid.*

The Court need not decide whether § 1446(b)(1) qualifies as a statute of limitations subject to a presumption of equitable tolling because, even if the presumption applies, it can be "rebutted if 'there [is] good reason to believe that Congress did *not* want the equitable tolling doctrine to apply.'" *Arellano* v. *McDonough*, 598 U. S. 1, 7. Here, the text, structure, and context of § 1446(b)(1) demonstrate that Congress did not want the 30-day deadline to be equitably tolled.

The text of § 1446(b)(1) speaks in strict, mandatory terms, requiring that a notice of removal "shall be filed within 30 days." Although such mandatory language alone is not sufficient to rebut the presumption of equitable tolling, it is consistent with treating the deadline as mandatory and not subject to equitable tolling. Cf. *Boechler*, 596 U. S., at 204, 211.

More important, and decisive here, is § 1446(b)(1)'s structure. An "explicit listing of exceptions," set forth in a detailed manner, strongly indicates "that Congress did not intend courts to read other unmentioned, open-ended, 'equitable' exceptions into the statute." *United States* v. *Brockamp*, 519 U. S. 347, 352. That is especially so when the "specific exceptions" already "reflect equitable considerations." *Arellano*, 598 U. S., at 7. There are several such exceptions here. First, and functioning much like an equitable discovery rule, § 1446(b)(3) provides an extension when a case at first appears unremovable but it is later "ascertained that the case is" (or has become) removable. Congress thus "has already effectively allowed for equitable tolling" in one respect but not others. *United States* v. *Beggerly*, 524 U. S. 38, 48. Section 1446(c)(1) also imposes a one-year cap on this rule in diversity cases, but creates an exception if a plaintiff acted in "bad faith," specifically "account[ing] for equitable factors" in a way that would be superfluous if § 1446(b)(1) already provided for equitable tolling more broadly. *Arellano*, 598 U. S., at 10.

Exceptions to the 30-day deadline outside of § 1446 confirm the point. For actions against foreign states, Congress specifically allowed "the time limitations of § 1446(b) . . . [to] be enlarged at any time for cause shown." § 1441(d). Similar provisions exist for certain intellectual-property cases, see § 1454(b)(2), and cases involving fatal accidents, see § 1441(e)(1). Each provision explicitly incorporates § 1446(b)(1)'s time

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limit but modifies it to allow equitable, case-specific exceptions that would be inexplicable and unnecessary if Congress already understood § 1446(b)(1) to contain a cross-cutting equitable-tolling rule. Congress's treatment of removal in criminal proceedings provides additional confirmation. Under § 1455(b)(1), a criminal defendant must generally remove within 30 days after arraignment, but "for good cause shown [a court] may . . . gran[t] . . . leave to file . . . at a later time." For civil cases, by contrast, Congress did not provide courts with a similar general power to extend the 30-day removal deadline.

"[T]he nature of the subject matter" here further underscores the unavailability of equitable tolling. *Arellano*, 598 U. S., at 14. The federal civil removal statutes have an "obvious concern with efficiency," *BP p.l.c.* v. *Mayor and City Council of Baltimore*, 593 U. S. 230, 245, and a "general interest in avoiding prolonged litigation on threshold nonmerits questions," *Powerex Corp.* v. *Reliant Energy Services, Inc.*, 551 U. S. 224, 237. Allowing equitable tolling would undermine Congress's manifest interest in resolving threshold removal questions early and conclusively, generating uncertainty and risking significant waste of resources. Cf. *Beggerly*, 524 U. S., at 49. Pp. 75–80.

(b) Enbridge's counterarguments are not persuasive. Enbridge's argument that rebutting the presumption of equitable tolling requires the "clearest command" from Congress conflicts with the Court's repeated holdings that the presumption is rebutted where "Congress's choice is evident," *Arellano*, 598 U. S., at 14; where tolling would be "inconsistent with the text of the relevant statute," *Beggerly*, 524 U. S., at 48; and where there is "good reason to believe Congress did not want equitable tolling to apply," *Brockamp*, 519 U. S., at 350. None of these decisions required the "clearest command" that Enbridge demands. Enbridge's attempt to characterize § 1446(b)(3) as an accrual rule rather than an exception does not account for the separate "bad faith" exception in § 1446(c)(1) or the many other provisions outside § 1446 that expressly allow courts to toll § 1446(b)(1)'s deadline "for cause shown." The fact that these provisions are located outside of § 1446 itself does not diminish their force; courts must consider equitable tolling's "incongruen[ce] with the statutory scheme" overall. *Arellano*, 598 U. S., at 13. Enbridge cannot identify any sensible reason why Congress would have adopted so many express, specific equitable exceptions to § 1446(b)(1) if equitable tolling was already available for belated removals across the board. Finally, Enbridge's argument based on § 1447(c)'s treatment of defects in subject-matter jurisdiction does not support equitable tolling. Pp. 80–84.

104 F. 4th 958, affirmed.

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SOTOMAYOR, J., delivered the opinion for a unanimous Court.

John J. Bursch argued the cause for petitioners. With him on the briefs were *Alice E. Loughran*, *Phillip J. DeRosier*, and *Jeffery V. Stuckey.*

Ann M. Sherman, Solicitor General of Michigan, argued the cause for respondent. With her on the brief were *Dana Nessel*, Attorney General of Michigan, *pro se*, *Christopher M. Allen*, Assistant Solicitor General, *Keith D. Underkoffler*, Assistant Attorney General, and *Spencer D. Smith*, Special Assistant Attorney General.*

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*Briefs of *amici curiae* urging reversal were filed for the State of West Virginia et al. by *John B. McCuskey*, Attorney General of West Virginia, and *Michael R. Williams*, Solicitor General, and by the Attorneys General for their respective States as follows: *Tim Griffin* of Arkansas, *Chris Carr* of Georgia, *Brenna Bird* of Iowa, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, and *Ken Paxton* of Texas; for the Chamber of Commerce of the United States of America et al. by *Shannon G. Denmark*, *Stephanie A. Maloney*, *Jonathan D. Urick*, and *Elizabeth Milito*; for North America's Building Trades Unions et al. by *Jonathan D. Newman* and *Jacob J. Demree*; for the Washington Legal Foundation by *Cory L. Andrews* and *Zac Morgan*; and for Arthur R. Miller by *Alexander Volokh.*

Briefs of *amici curiae* urging affirmance were filed for the State of Minnesota et al. by *Keith Ellison*, Attorney General of Minnesota, *Elizabeth Kramer*, Solicitor General, and *Oliver J. Larson* and *Ryan V. Petty*, Assistant Attorneys General, and by the Attorneys General for their respective jurisdictions as follows: *Kristin K. Mayes* of Arizona, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Anne E. Lopez* of Hawaii, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for the Center for Litigation and Courts by *Joshua P. Davis* and *Scott Dodson*; for Federal Courts and Civil Procedure Scholars by *Dana Kaersvang* and *Hyland Hunt*; for the Great Lakes Business Network by *Bruce T. Wallace* and *Andrew P. Buchsbaum*; and for Tribal Nations by *Caroline A. Flynn.*

JUSTICE SOTOMAYOR delivered the opinion of the Court.

Under 28 U. S. C. § 1446(b)(1), a party sued in state court who prefers to proceed in federal court generally has 30 days after receiving notice of the state-court action to remove the lawsuit to federal court (if there are grounds for doing so). In this case, petitioners (collectively Enbridge) unquestionably did not meet § 1446(b)(1)'s 30-day deadline, instead waiting 887 days after being served with the Michigan Attorney General's state-court complaint before removing the case to federal court. Enbridge argues that the District Court nevertheless had equitable discretion to toll § 1446(b)(1)'s deadline and excuse this late filing. This Court disagrees. Because § 1446(b)(1)'s text, structure, and context are inconsistent with equitable tolling, Enbridge's removal was untimely and remand to the Michigan state court is required.

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The right to remove a lawsuit from state to federal court "is entirely a creature of statute[,] and 'a suit commenced in a state court must remain there until cause is shown for its transfer under some act of Congress.' " *Syngenta Crop Protection, Inc.* v. *Henson*, 537 U. S. 28, 32 (2002). Congress provided one such basis for removal in § 1441(a), which authorizes removal if a civil action "brought in a State court" is one over "which the district courts of the United States have original jurisdiction." For example, if a plaintiff sues in state court bringing federal claims or if the plaintiff and defendant are from different States and there is a sufficient amount in controversy, the defendant may remove to federal court. See §§ 1331, 1332(a).

For defendants seeking to remove under § 1441(a), the procedures for doing so are largely set forth in § 1446. Key here as to timing, the "notice of removal of a civil action or proceeding shall be filed within 30 days after the receipt" of the "initial pleading" in that action, "or within 30 days after